

**FICTIONAL TRAINING ARTIFACT — NOT FILED — NOT LEGAL
ADVICE**

UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA
Richmond Division — Civil Action No. SYN-EDVA-25-CV-0412

CERTIFIED DISTRICT DOCKET AND RECORD-COMPLETE CERTIFICATE

Certified January 23, 2026.

The Clerk certifies the following docket history for *Leora Benton v. Blue Cedar Compliance, Inc.* through January 23, 2026. The entries identify the filings, discovery materials designated by the parties, dispositive rulings, and notice that form the transmitted merits record. Discovery exchanges and deposition transcripts are listed when designated even though they were not filed when originally served. Routine electronic notices, duplicate attachments, proposed orders, and administrative quality-control entries are not treated as separate substantive documents.

The district docket number is SYN-EDVA-25-CV-0412. The Fourth Circuit docket opened from the notice of appeal is SYN-CA4-26-CV-4101. The caption remained *Leora Benton v. Blue Cedar Compliance, Inc.* throughout the district action. The case involved one Title VII retaliation claim, one plaintiff, and one defendant. Unless an entry states otherwise, filing and service occurred electronically on the date shown, and no document was sealed. This certificate records events; it does not add findings beyond the orders and judgment themselves.

June through August 2025 — pleadings, service, and schedule

ECF No. 1, filed June 16, is Benton's complaint and jury demand alleging retaliation based on her January opposition and EEOC participation. ECF No. 2 issued the summons June 17, and ECF No. 5 recorded service and Blue Cedar's appearance June 23. ECF No. 7, filed July 7, is Blue Cedar's answer. It admits the real savings target, termination, protected communications, agency notice, and Pike's decision authority while disputing knowledge, comparator similarity, pretext, and but-for causation. No counterclaim or additional party was added.

ECF No. 11, filed August 11, is the joint Rule 26 report proposing discovery subjects and dates. ECF No. 12, entered August 13, adopts the schedule. It sets August 15 for initial disclosures, September 5 for substantial production, October 10 for the discovery close, and October 17 for supplementation absent leave. Dispositive motions are due October 27, oppositions November 10, and replies November 17; jury trial is set for January 26, 2026. The parties exchanged initial disclosures August 15. Each identifies Wynn for comparator duties, metrics, scoring, continuity, and retained assignments, but no motive-related conversation. Routine ECF Nos. 8 through 10 concern counsel, electronic service, and the initial conference and add no separately designated evidence.

September 2025 — production and first depositions

The parties certified substantial document production on September 5. The designated production includes the administrative charge file, policies, opposition emails, EEOC routing records, RIF workbook, comparator scorecards, calibration minutes, explanation communications, performance metrics, and headcount ledger. Native workbook data and message metadata were made available for inspection. No motion to compel remained pending after the certification.

Benton was deposed September 18. She testified about duties, opposition, EEOC participation, records learned in discovery, score changes, comparators, termination, and the stated limits of her Wynn disclosure. Pike was deposed September 25. He testified about his authority, the savings target, receipt and awareness of the EEOC matter, calibration approval, comparator exceptions, alternative scenarios, redistribution, and explanations. Solis was deposed September 29 about employee-relations intake, routing, workbook custody, variance review, schedule administration, and the distinction between witness identity and information subjects. The transcripts were designated in full for the district record subject to ordinary objections.

October 2025 — remaining depositions and close of discovery

Wynn was deposed October 2 concerning duties, source metrics, calibration score, continuity exception, and assignments. She discussed a conditional Northline coverage question but did not identify motive-related wording. Ibarra was deposed October 3 concerning travel, duties, metrics, his availability exception, and Oriole work. Voss was deposed October 7 concerning supervision, score recommendations, client continuity, Benton's complaint, and handoff planning; she denied linking the complaint to the Northline contingency. Solis testified as Blue Cedar's prepared Rule 30(b)(6) designee on October 9 concerning the RIF process, record systems, scoring, exceptions, decision authority, explanations, and post-RIF organization.

Fact discovery closed October 10. Wynn reviewed her transcript October 13, contacted Benton October 14, and Benton relayed a newly recalled subject to counsel October 15. The October 17 supplementation deadline passed without a subject correction or request for leave. Counsel interviewed Wynn October 20. ECF Nos. 28 and 29, filed October 27, are Blue Cedar's motion for summary judgment and supporting memorandum. ECF No. 30 is its statement of facts.

November 4 through November 10 — new declaration and opposition

On November 3, Wynn signed a declaration recounting a March 7 conversation with Voss that included a reference to Benton's HR and EEOC activity. Benton first served the declaration on November 4. The service occurred after discovery and supplementation had closed and after Blue Cedar filed its summary-judgment motion. The parties conferred about use of the new subject but did not reach an agreement. No motion for leave to supplement was filed before Benton used the declaration.

ECF No. 34, filed November 10, is Benton's opposition to summary judgment. ECF No. 35 is Benton's response and statement of disputed facts. The two-page Wynn declaration at ECF No. 36-1 is part of the procedural record but later became subject to the Court's use ruling. The opposition relies separately on admitted routing records, timing, score changes, comparator exceptions, alternative scenarios, performance evidence, redistribution, and explanation communications. Electronic service was completed that day. The filings did not add a new claim or request an extension of the dispositive schedule.

November 12 through November 24 — exclusion briefing and merits reply

ECF No. 37, filed November 12, is Blue Cedar's motion to exclude the newly asserted Wynn subject under Rules 26 and 37. It requests no restriction on her timely disclosed comparator testimony. The motion addresses disclosure history and the five considerations applied in *Benjamin v. Sparks*. ECF No. 39, filed November 17, is Blue Cedar's summary-judgment reply. It treats the Wynn declaration as disputed procedural material and argues that the admitted record does not support but-for retaliation.

ECF No. 41, filed November 19, is Benton's opposition to exclusion and counsel's chronology proffer. It does not replace or duplicate the declaration attached to the summary-judgment opposition. Benton offers limited curative discovery and explains counsel's decision to await a signed account. ECF No. 43, filed November 24, is Blue Cedar's exclusion reply. It argues that a subject-level supplement could have been served before October 17 and that cure would require reopening multiple witnesses. The Court took the use motion under advisement without oral argument.

December 2025 — use ruling, joint chart, opinion, and judgment

ECF No. 44, entered December 1, grants the exclusion motion in limited part. It bars use of the new March 7 motive-related statement and declaration on the pending motion, at a hearing, or at trial. It preserves Wynn's timely disclosed comparator testimony, imposes no fee, makes no sham-affidavit ruling, and does not resolve credibility between Wynn and Voss. The ruling rests solely on Rules 26 and 37 after consideration of surprise, cure, disruption, importance, and the explanation for delay.

ECF No. 45, entered December 2, directs a joint admitted-record chart; ECF No. 46, filed December 5, supplies it and labels the excluded declaration procedural only. ECF No. 49, entered December 19, is the memorandum opinion granting Blue Cedar summary judgment on the admitted record. ECF No. 50, entered separately the same day, is final judgment for Blue Cedar on the sole claim. The Clerk served both entries, terminated the pending motion, canceled the January trial, and closed the district action.

January 2026 — notice and transmission

ECF No. 51, filed Friday, January 16, is Benton's notice of appeal to the United States Court of Appeals for the Fourth Circuit. It identifies the December 19 final judgment, the accompanying memorandum opinion, and the December 1 exclusion order. The docket contains no post-judgment motion that changed the time to appeal. Thirty calendar days after December 19 fell on Sunday, January 18; Monday, January 19 was a legal holiday. The January 16 filing preceded the resulting Tuesday, January 20 deadline.

On January 20 the district clerk transmitted the notice, civil docket, party information, judgment, and electronic filing confirmation. The Fourth Circuit assigned appellate docket number SYN-CA4-26-CV-4101 and returned an opening acknowledgment. The parties jointly confirmed that no hearing transcript was required because the dispositive and exclusion motions were resolved on the written submissions. On January 22 they completed the designated-record cross-check. ECF No. 54, entered January 23, records this certificate and the completion of district-record assembly.

Designated documents and completeness check

The designated merits record contains exactly thirty-seven unique substantive documents totaling 262 searchable pages. Documents 1 through 19 comprise pleadings, administrative materials, policies, fact exhibits, and the Benton and Pike depositions. Documents 20 through 24 are the Solis, Wynn, Ibarra, Voss, and corporate depositions. Documents 25 through 30 are the summary-judgment memoranda, fact statements, and joint causation chart. Documents 31 through 33 are the disclosure- use motion, opposition and proffer, and narrow exclusion order. Documents 34 through 37 are the summary-judgment opinion, separate judgment, notice of appeal, and this certified docket record.

The pagination runs continuously from the first complaint page through the final certificate page, with no duplicate substantive document or omitted page inside a designated item. The Wynn declaration appears once as an attachment to Benton's summary-judgment opposition; the later opposition to exclusion supplies counsel's chronology without reproducing it. Routine docket-only entries remain recorded above but are not counted as additional designated documents.

Clerk's certification

I certify that the foregoing docket history accurately states the dates, relationships, and dispositions shown on the district docket through January 23, 2026. I further certify that the designated record has been checked against the parties' joint inventory: thirty-seven documents, 262 substantive pages, one continuous pagination sequence, and no sealed item. The December 1 order controls the permitted use of the Wynn declaration notwithstanding its retention in the procedural record. The December 19 memorandum opinion relies only on the admitted record, and the separate judgment resolves the only claim and all parties.

The notice of appeal, final judgment, memorandum opinion, exclusion order, party information, and this completion certificate were associated with Fourth Circuit docket SYN-CA4-26-CV-4101. The district file contains no unresolved motion to alter the judgment, no outstanding transcript order, and no pending request to supplement the designated materials as of certification. This certificate does not express a view on the merits of any issue identified in the notice. Executed by the Clerk for the United States District Court for the Eastern District of Virginia, Richmond Division, on Friday, January 23, 2026.